Effective: 24th June, 2022

Privacy policy for Gaana

Entertainment Network India Ltd. ("we", "our", "us", "Gaana") values the trust placed in us by data subject ("you", "your", "user", "subscriber") and therefore, we follow the highest standards of privacy guidelines to protect the information shared by you with us.

This Privacy Policy ("Policy") describes the information which Gaana collects from you when you download, access, or use the music streaming services ("**Gaana Services**") made available by us through our mobile application - **Gaana Music: Bollywood Songs & Radio** ("**Application**") and our Website – www.gaana.com ("**Website**").

This Privacy Policy should be read in conjunction with the Terms of Use applicable to Gaana services you are using.

Please keep in mind that when you provide information to us on a third-party Website or platform (for example, via our Application like social media login the information we collect is through those third-party websites linked with our Application is covered by this privacy policy, and the information the third-party website or platform collects is subject to the third-party website or platform's privacy practices. Privacy choices you have made on the third-party website or platform will not apply to our use of the information we have collected directly through our Application. Please also keep in observance that our Website and Application may contain links to other websites not owned or controlled by us and we are not responsible for the privacy practices of those websites. We encourage you to be aware when you leave our Website or Application and to read the privacy policies of other Websites that may collect your personal information.

All capitalized terms that have not been specifically defined herein shall have the same meaning as provided under the Terms of Use.

User consent

By using Gaana Services (for example, when you register for an account, purchase a service, communicate with us, on our Website or Application), you agree to provide consent to our collection, use and sharing of your personal information as described in this policy. In some cases, particularly if you reside in a country governed by a data protection regulation, we may ask you to provide explicit consent to access our services before proceeding for further operations. In case of any roaming user profile or if you are a traveler visiting various countries around the world and avail Gaana's services, then we will consider the country of registration as your primary country and the consents obtained at the time of registration will be valid for your processing of personal information.

Accessing Website and Gaana Services through VPN

You should not access or use the Website or Gaana Services by means of any mechanism or technology which conceals your actual geo-location or provides incorrect

details of your location (for example, use a virtual private network (VPN) to access Gaana Services).

We will not be responsible or liable for any collection, storage or processing of your personal information or data if you use any mechanism or technology to access or use Website Gaana Services which conceals your actual geo-location.

Collection and Use of Personal Information

'Personal Information' or 'PII' or "Personal Data" is defined as any information that identifies (whether directly or indirectly) to a particular individual or natural person, such as the individual's name, postal address, email address, and mobile number indicating to that particular person or is identifiable. When anonymous information is directly or indirectly associated with personal information, the resulting information also is treated as personal information.

A. Information you provide to us:

Information collected from you directly

We collect the following personal information about you for, including but not limited to, log-in/sign up to enable account creation and provision of Gaana Services, which are detailed below under the heading "Purposes of Processing".

- E-mail id
- Mobile Number
- Name (First name and Last name)
- Date of Birth
- Gender
- Photo (you upload in your account settings)

Information you provide for communicating with us

If you send us personal correspondence, such as emails or letters, or if other users or third parties send us correspondence about your activities or postings on the Website, we may collect and store such information.

We may collect additional information at other times, including but not limited to, when you provide feedback(s), modify your content or email preferences, respond to surveys, provide comments, or communicate with us. This information may include your name, e-mail id, mobile number, location, etc.

B. Information automatically collected while browsing/navigating through the Website/Application

Cookies

To improve your experience on the Website, we collect, use and store cookies. These are files that web servers place on your device to provide you with a seamless interaction with the platform. Some of these cookies are mandatory for functioning of the Website while some cookies are used to track your behavior on the platform for enhanced

experience. We will seek your consent before using any cookies which are not mandatory in nature.

For more information about the cookies we use, please refer to our cookie policy.

Device Information

When you use the Gaana Services, we may also collect information from your device. This information includes the following, including but not limited to:

- the make and model of your device,
- the operating system of the device,
- software details,
- device IDs,
- IP address/MAC address,
- GPS location accurate to 300 meters,
- Advertisement Identifiers

Do Not Track

The Website and Gaana Services currently do not process or respond to "Do Not Track" requests/signals which some internet browsers have the ability to send out.

In App Permissions

To provide you with certain features and to improve your experience on the mobile application, we ask you for the following in app permissions –

- Microphone
- Gallery
- Phone/SMS
- Camera
- In APP purchases
- Bluetooth

We will seek your consent before using any permissions which are not mandatory in nature. The use of Microphone and Phone/SMS are essential to use audio for audio searching and sending OTP (one -time-password) respectively. However, we do not access your personal contacts or messages when you provide permission on your device.

C. Inferred Information through usage and log data

We may track certain information about you based upon your behavior on the Gaana Services. We use this information for conducting internal research on our users' demographics, devices, interests, and behavior to better understand, protect and serve our users.

We may also collect your Information to track user behavior and preferences for internal analytics and research. We may also use your information:

i. To evaluate your interest for various genres of content, services, offers.

ii. To perform analytics and conduct customer research, to determine your interest, for identifying content that generate sales and to analyze traffic patterns.

iii. Keep track of preferences you specify while you are using Website content or services and provide you with personalized content.

iv. Keep track of your preferences and provide advertisements that are more relevant to you

If you choose to post messages on social media accounts, message boards, chat rooms or other message areas or leave feedback, we will collect that information you provide to us. We retain this information as necessary to resolve disputes, provide customer support and troubleshoot problems as permitted by law.

The above information may also be captured by keeping cookies on our Website by our affiliates for the purposes mentioned above.

D. Information we collect from third parties

a) Information obtained from other Sources

We may receive information about you from other online sources. We may add it to our account information system and treat it in accordance with this policy. If you provide information to the platform provider or other partner to whom we provide services, your account information may be passed on to us. We may obtain updated contact information(s) from third parties in order to correct our records and fulfil the Services or to communicate with you or share the information with any third party.

b) Information obtained from Third party websites

If you link, connect or login to the Gaana Services account through a third party service i.e., Google, Facebook, and Apple, they may send us information such as your registration and profile information from the service. Below mentioned are the information getting collected through social platforms such as:

- Facebook – Public information, Name, Email id, friend list, Date of birth, Likes, profile picture
- Google – Email id
- Apple- Apple id

c) Demographic and other information

We may reference other sources of demographic and other information in order to provide you with more targeted communications and promotions. We use various third party analytics service providers, among others, to track the user behavior on our Website. They are used to support display advertising towards helping us gain understanding of our users' Demographics and Interests. The reports are anonymous and cannot be associated with any individual personally identifiable information that you may have shared with us. You can opt-out or opt-in by giving a consent to serve you advertisements when you visit our Website or Application.

d) Subscription or Paid service data

When you chose any subscription or paid service, we or our payment gateway provider may collect your personal information such as address or billing information, including your credit/debit card number and expiration date etc. The subscriptions or paid Services may be on auto renewal mode unless cancelled. If at any point you do not wish to auto-renew your subscription, you may cancel your subscription before the end of the subscription term or contact us on our support e-mail.

e) Transactional/ Billing information

Based on your purchase of a subscription or paid service, for example to go ad-free or get Gaana Plus, our payment gateway partner may collect information, including but not limited to, your credit/debit card details or other bank account details along with your billing address. This information is stored by the payment gateway partner. For instance, the Services will be using third party payment gateway partners to process and facilitate the payment of your subscription fee to the Services for providing you access to the subscription; such payment gateway partners are not controlled by us. When you visit such payment gateways you do so at your own risk. We encourage you to familiarize yourself with the privacy statements provided by such payment gateways prior to providing them with information about you or entering into any transactions with them. We do not assume any responsibility or liability for such payment gateways, the content of such payment gateways and their privacy practices, nor do we endorse them.

We may receive financial or transactional information (for e.g., transaction ID, etc.) from third party vendors in case of payments, for reconciliation and validation of transactions and for the purpose of resolutions of complaints (in case of failed transactions and refunds).

Sharing/Disclosure to Third parties

a) **Service Providers**

The Application may include links to other websites or applications (for e.g., links to payment gateways for payment of subscription fees). Such websites or applications are governed by their respective privacy policies, which are beyond our control. Once you leave our servers (you can tell where you are by checking the URL in the location bar on your browser), use of any information you provide is governed by the privacy policy of the operator of the application, website you are visiting. That policy may differ from ours. If you can't find the privacy policy of any of these websites via a link from the application's/website homepage, you should contact the application/website owners directly for more information.

b) **Promotional Offers**

We may share or disclose your personal information outside of Gaana when we have your consent. For example, providing SMS and E-mail related services such as marketing newsletters, promotions and offers.

c) **Advertisers**

When we present information to our advertisers -- to help them understand our audience and confirm the value of advertising on our Website or Application -- it is usually in the form of aggregated statistics on traffic to various pages / content within our Website or Application. We use third-party advertising companies to serve ads when you visit our Website or Application. These companies may use information (not including your name, address, email id or mobile number or any other personally identifiable information) about your visits to this and other websites or application, in order to provide advertisements about goods and services of interest to you. We do not provide any personally identifiable information to third party websites / advertisers / ad-servers without your explicit consent.

d) **Legal Protections and Other Disclosures**

We may transfer, sell, or assign any of the information described in this Policy to third parties as a result of a sale, merger, consolidation, and change of control, transfer of assets or reorganization of our business. We may transfer and disclose information, including your Personal Information, to third parties:

i. to comply with a legal obligation; when we believe, in good faith, that such disclosure is required under the law for us to be compliant with such law or at the request of any governmental authorities conducting an investigation. Pursuant to valid requests by law enforcement agencies, we may also share device identifiers or any form of Personal Information and may do so in cooperation with copyright owners, Internet service providers, wireless service providers or law enforcement agencies, in our discretion. Such disclosures may be carried out without notice to you.

ii. to verify or enforce the Privacy Policy, Terms of Use or other applicable policies;

iii. to respond to an emergency; or otherwise, to protect the rights, property, safety, or security of third parties, users, or the public.

e) **Business transfers**

We provide personal information to our affiliates and other trusted businesses or persons to process it for us, based on our instructions and in compliance with our Privacy Policy and any other appropriate confidentiality and security measures. For example, we may use service providers to help us with customer support.

We may also share your personal information such as Name, E-Mail ID, Mobile Number, and other such generic information with our group companies/affiliates as a part of the SSO login functionality after you have provided your consent while registering with us. After obtaining consent, we may also share information about your interests and choices with our group companies/affiliates to provide you with personalized recommendations and advertisements on our Website and Application.

We also ensure that the recipients of information collected and shared by us agree to process such information based on our instructions and in compliance with this Policy and any other appropriate confidentiality and security measures.

f) **Do Not Sell My Information (only for California Residents)**

Under CCPA, residents based out of California have the right to "Opt Out" of such sale of their information at any time. Please be advised that we do not sell Personal Information for monetary consideration; however, we may share certain personal information with third parties under circumstances which might be deemed a "sale" under the California Consumer Privacy Act. Please note that personal information is shared only for the business or commercial purposes under appropriate contractual agreement.

You may opt out of sale of your Personal Information my clicking on the Do Not Sell My Information link in the application or send us an email on feedback@gaana.com

Lawfulness of processing

We will only collect and process Personal Information about you where we have lawful basis. Lawful basis on which we would process our personal information includes:

1) obtaining explicit consent from you for processing your personal information
2) where it is necessary to carry out our legal obligations
3) exercise rights under a contract with you
4) processing for "legitimate interests" where processing is necessary by us to provide you with customer support or process your data for providing subscription services (For e.g., processing your information by our payment gateway service providers).

Purposes of processing

We use information to provide, analyze, administer, enhance, and personalize our service and marketing efforts, to process your registration, to provide you services, and to communicate with you related to below mentioned points. For example, we use information to:

a) To provide you our services
b) To enable your Registration/Sign-Up and account creation on our services.
c) To provide you information about our services and products
d) To provide In-App permissions to allow interaction with the Application basis the device features
e) To provide you personalized services and products
f) To show you personalized advertisements and other contents, ad and content measurement, audience insights and product development
g) To conduct profiling and show you personalized music recommendations
h) To provide direct marketing and newsletters
i) To improve our and our group companies' products and services

j) To provide you a tailored and consistent experience across products and services offered by us and our group companies
k) For statistical analysis- Analyze and understand our audience, improve our service (including our user interface experiences), recommendation algorithms and delivery which may require sharing personal information with our group companies and affiliates or third party service providers.
l) To communicate with you in relation to your account or service, service updates or other non-marketing communications
m) To address your data subject requests
n) For you to participate in interactive features of the Website (such as Gaana rewards, feedback, etc.)

The Personal Information obtained from you will be processed by us for the purpose of the above-mentioned purposes and none other. Your Personal Information might also be shared with our employees, associated partners and other such vendors but it shall be ensured that the parties mentioned above are also under contractual obligations to process your Personal Information only for the specified purpose(s) and they implement technical measures to safeguard your Personal Information. In the event, we wish to process your Personal Information for purposes other than those mentioned herein, we shall seek specific consent from you prior to processing your Personal Information for such additional purposes unless the same falls within legitimate business interest for processing.

Information use by the company

The Information as supplied by the users enables us to improve the Services and provide you the most user-friendly experience. All required information is service dependent, and the Company may use the above said user Information to, maintain, protect, and improve the Services (including advertising on the "Application") and for developing new services. We may also use your email address or other personally identifiable information to send commercial or marketing messages with your consent [with an option to subscribe / unsubscribe (where feasible)]. We may, however, use your email address without further consent for non-marketing or administrative purposes (such as notifying you of major changes, for customer service purposes, billing, notifying you in case of breach incidents, etc.)

Any personally identifiable information provided by you will not be considered as sensitive if it is freely available and / or accessible in the public domain like any comments, messages, blogs, scribbles available on social platforms like Facebook, twitter etc. Any information posted/uploaded/conveyed/communicated by users on the public sections of the "Application" becomes published content and is not considered personally identifiable information subject to this Privacy Policy. In case you choose to decline to submit personally identifiable information on the Application, we may not be able to provide certain services on the Application to you. We will make reasonable efforts to notify you of the same at the time of opening your account. In any case, we will not be liable and or responsible for the denial of certain services to you for lack of you providing the necessary personal information.

When you register with the Application or Services, we contact you from time to time about updating of your personal information to provide the users such features that we

believe may benefit / interest you.

How long do we store and use your information

We retain the information which we have collected no longer than is necessary. This is determined on a case by case basis. Normally we will retain the information as long as you maintain an account with us and till the time you continue to access and use Gaana Services. We will delete your information whenever you request us to do so. However, we may archive and/or retain some information for legal purposes.

Your controls and choices

For any of the below request you may send us an e-mail to our support team

A. Accessing and rectifying your personal information

When you use the Services/Website/Application (or any of its sub Websites), we make good faith efforts to provide you, as and when requested by you, with access to your personal information and shall further ensure that any personal information or sensitive personal data or information found to be inaccurate or deficient shall be corrected or amended as feasible.

You can make access requests by sending an e-mail to our Data Protection officer at euprepresentative@timesinternet.in. You will get a link on your registered Email address through which you can access all the data Gaana collects and stores about you.

You can ask us to correct inaccurate or incomplete personal information

a. Concerning your login credentials by editing the same through My Accounts section, through the SSO portal. The same shall be reflected across all properties.
b. Concerning details that are separately collected and maintained by Gaana by sending an e-mail to our support team to perform the rectification.

B. Data Portability

You may also be entitled to request copies of personal information that you have provided to us in a structured, commonly used, and machine-readable format; wherever feasible. If you are registered on the Gaana Services, then you can download the information which we have collected and stored for download by sending us an email request on feedback@gaana.com. Through this, a copy of your information that we have collected and stored will be downloaded on your machine.

C. Data Retention and Erasure

We retain your personal information as long as necessary for us to provide services to you or you ask us to not retain your data. If you no longer want us to use your information, then you can request that we erase your personal information and close your Gaana Services account. Please note that if you request for the erasure of your personal information,

- The personal information (Name, E-mail, Mobile No) will be retained as a part of the SSO Login functionality and will be governed by the SSO Login Policy:

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- We may retain some of your personal information as necessary for our legitimate business interests, such as fraud detection and prevention and enhancing safety. For example, if we suspend a Gaana account for fraud or safety reasons, we may retain certain information from that account to prevent that user from opening a new account in the future.
- We may retain and use your personal information to the extent necessary to comply with our legal obligations. For example, we may keep some of your information for tax, legal reporting and auditing obligations.
- Information you have shared with others (e.g., Comments, Reviews, etc.) may continue to be publicly visible on Gaana, even after your account is canceled. However, attribution of such information to you will be removed. Additionally, some copies of your information (e.g., log records) may remain in our database, but are disassociated from personal identifiers.
- Because of the way we maintain certain services, after you delete your information, residual copies may take a period of time before they are deleted from our active servers and may remain in our backup systems.

You can request for deletion of your information by mailing us at feedback@gaana.com. Your request will be processed, and you will receive confirmation of the same via email. Please note that this will only perform a deletion of the information that has been collected by Gaana and will disable your SSO information for Gaana. You will still exist as a user across all the other TIL platforms. In case you also wish to delete your SSO related information, kindly follow the instructions displayed on the screen or please read the SSO privacy policy to understand how to invoke your rights.

While we will delete the information which we have collected and stored, you may also be required to delete some information which is stored on the device you use to access Gaana Services (mobile phone, computer, tablet) manually. If you are accessing and using Gaana Services on multiple devices (as a log-in user or otherwise), you may be required to manually delete certain information which has been collected by us and stored on your device.

Please note that if you have multiple accounts with us, then you will have to raise separate requests for each of the accounts, along with the associated email IDs or phone numbers.

D. Withdrawing Consent and Restriction of Processing

For withdrawing your consent at any time during the tenure of your services with us, you may choose to do so by sending us an e-mail. We shall review your request and may ask you to verify your identity. Post verification we will withdraw the consent for which request was made by you and stop any further processing of your personal information.

E. Objection to Processing

Where your personal information is processed for direct marketing purposes, you may, at any time ask us to cease processing your data for these direct marketing purposes by sending an e-mail to us.

Please be aware that if you do not allow us to collect personal information from you, we may not be able to deliver certain experiences, and services to you, and some of our services may not be able to take account of your interests and preferences. If collection of personal information is mandatory, we will make that clear at the point of collection so that you can make an informed decision whether to participate.

We may take 30 days from the date of receipt of request to complete your requests. However, if the nature of the requests are excessive in nature or would require significant effort then We may ask for an extension of 60 days by giving a prior notice to you with the reason for the extension.

We ask individual users to identify themselves and the information requested to be accessed, corrected or removed before processing such requests, and we may decline to process requests that are unreasonably repetitive or systematic, require disproportionate technical effort, jeopardize the privacy of others, or would be extremely impractical (for instance, requests concerning information residing on backup tapes), or for which access is not otherwise required. In any case, where we provide information access and correction, we perform this service free of charge, except if doing so would require a disproportionate effort.

F. Non-discrimination for exercising your rights

CCPA prohibits discrimination against California residents for exercising their rights under CCPA. We hold the practice of non-discrimination strongly and do not deny or provide a different level or quality of services or charge different rates or penalties on residents who exercise their CCPA rights.

G. Complaints

You can write to our data protection officer in case of any grievance or compliant. You have the right to complain about the data processing activities carried out by Gaana before the competent data protection authorities.

H. Metrics

California law requires us to compile metrics for the previous calendar year regarding consumer requests and responses catered. We will disclose the metrics with relevant details by July every year.

Children's privacy

Gaana Services is not aimed or targeted towards children under the age of 18. We do not intend to or target to collect any information about children under the age of 18. If you are a parent or guardian of a child under the age of 18, and if you are aware that your child has used Gaana Services and provided his/her information to us without your consent, then please contact us on our support e-mail id. We will delete or otherwise cease processing your child's information within a reasonable time. Children below the age of 18 must access or use Gaana Services only with the approval of and under the supervision of their parent or legal guardian.

However, we consider it the responsibility of parents to monitor their children's use of our services. Nevertheless, it is our policy not to collect and process any personal

information from children below 18 years of age or offer to send any promotional materials to persons in that category. Gaana does not seek or intend to seek or receive any personal information from children. Should a parent or guardian have reasons to believe that a minor has provided Gaana with personal information without their prior consent, please contact our customer support team to ensure that the personal information is removed from the Gaana Services.

Data transfer, storage and processing globally

We operate globally and may transfer your personal information to individual companies of Gaana and its affiliated companies or third parties in locations around the world for the purposes described in this privacy policy. Wherever your personal information is transferred, stored or processed by us outside your jurisdiction, we will take reasonable steps to safeguard the privacy of your personal information by implementing appropriate contractual and legal requirements. Additionally, when using or disclosing personal information transferred from the European Union, we use standard contractual clauses approved by the European Commission and adopt other means under European Union law for ensuring adequate safeguards.

Security measures

We take appropriate security measures to protect your information against unauthorized access to or unauthorized alteration, disclosure or destruction of your information. These include internal reviews of our data collection, storage and processing practices and security measures, including appropriate encryption and physical security measures to guard against unauthorized access to systems where we store personal information.

All information gathered on the Gaana Services is securely stored within our controlled database. The database is stored on servers secured behind a firewall; access to the servers is password-protected and is strictly limited. If you know or have reason to believe that your Gaana Services account credentials have been lost, stolen, altered, or otherwise compromised or in case of any actual or suspected unauthorized use of your account, please contact us by contacting our customer support team.

Account Deletion

Account Deletion Request Process:

We are committed to ensuring that our users have control over their personal data. If you wish to have your account and associated data deleted, please follow these steps:

- Log In: Sign in to your account within the Gaana App.
- Access Account Settings: Navigate to the "App Settings" by clicking the top right icon in the app Home page.
- Access Profile Settings: Navigate to the “Profile Settings” by clicking the profile icon at the top left in the Settings page.
- Request Deletion: Within the "Profile Settings," select the option to "Delete Account".
- Confirmation: A confirmation prompt will appear to ensure that you wish to proceed with the account deletion. Please read the prompt carefully and confirm

your decision.
- Verification: Next we need to verify your identity to prevent unauthorized account deletion requests. You will receive either an email or SMS, please follow the instructions to complete the verification process.
- Deletion Process: Once your account deletion request is confirmed, your account and associated data will be queued for deletion within 24 hours.
- Deletion Request via Email: You can request deletion of your information by mailing us at feedback@gaana.com. Your request will be processed, and you will receive confirmation of the same via email.

Data Deletion and Retention:

Data Deletion: Upon the successful completion of an account deletion request, the following data will be deleted:

- Personal Information: Any personally identifiable information (PII) provided during the account creation process, such as name, email address, and contact information.
- Usage Data: Data related to the user's interactions with the app, such as app usage history and engagement metrics.
- Account Preferences: User-specific settings, preferences, and customization options.

Data Retention: In certain cases, limited data may be retained for a specific duration after account deletion:

- Anonymized Analytics Data: Aggregated and anonymized data that does not identify individual users may be retained for analytical purposes. This data is used to improve the app's performance and user experience.
- For purposes of Legal Process: Data necessary for the purpose of any legal claim, dispute or any legal process including but not limited to record keeping of customers for the use period prior to such deletion (for identifying any Intellectual Property Rights infringement, violation of Terms of Use and/or any other breaches etc.)and/or for any investigation or preservation of information for any legal process.

Please note that any data retention beyond the scope mentioned above will be in compliance with applicable laws and regulations, and your privacy rights will be respected. This privacy policy may be amended from time to time to comply with any new laws, regulations, or guidelines that may be issued by the central government and/or any other appropriate authority. We will notify you of any such changes by posting the updated policy on our app or by sending you an email. You are advised to review this policy periodically to stay informed of how we handle your personal data.

Updates and changes

This Privacy Policy is subject to change from time to time. We reserve the right, at our sole discretion, to modify the terms of this Privacy Policy from time to time in order to ensure compliance with applicable laws (“Updated Terms”). The Updated Terms shall

be effective immediately and shall supersede these the terms of this Privacy Policy. We will not be under an obligation to notify you of any changes to this privacy policy except if the changes made to the policy significantly affect your rights or as may be required by law. You shall be solely responsible for reviewing the Privacy Policy from time to time for any modifications. By continuing to use Gaana.com after the updated Terms have been published, you affirm your agreement to the updated terms.

Contact us

I. Support

If you require any information or clarification regarding the use of your personal information or this privacy policy or grievances with respect to use of your personal information, please email us at feedback@gaana.com.

II. Data Protection Officer

For any questions or concerns about this Policy, contact our Data Protection Officer any one of these ways:

Email : euprepresentative@timesinternet.in

You can also write to:

Times Internet

4th Floor, 1 Kingdom Street, Paddington Central London W2 6BD

If you have any queries, complaints regarding the collecting, processing, transfer of personal data/information or regarding this policy please do contact our Data Protection Officer.